



CHAPTER i.

An Act to confirm a Provisional Order of the Minister of Health relating to the urban district of Shipley.

[26th March 1941.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a Provisional Order which needs confirmation by Parliament:

38 & 39 Vict.
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Shipley) Act 1941.

Short title.

SCHEDULE.

URBAN DISTRICT OF SHIPLEY.

Provisional Order altering and partially repealing certain local Acts and Provisional Orders.

17 & 18 Vict.
c. lxxvii.
37 & 38 Vict.
c. cvii.
1 Edw. 7.
c. ccxxxii.
4 Edw. 7.
c. lxxvi.
2 & 3 Geo. 5.
c. lvi.

WHEREAS by the Shipley Waterworks and Police Act 1854 the Shipley Local Government Act 1874 the Shipley Improvement Act 1901 the Shipley Urban District Council Act 1904 the Shipley Urban District Council Act 1912 and certain Provisional Orders confirmed by Parliament (in this Order referred to as "the local Acts and Orders") the urban district council of Shipley (in this Order referred to as "the council") are authorised to supply water within certain limits:

And whereas it is provided by section 25 (Intersecting streets) of the Shipley Urban District Council Act 1912 that no street shall be laid out of more than one hundred and thirty yards in length without an intersecting street at intervals of not more than one hundred and thirty yards in any such street and that any person who shall offend against that section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings:

And whereas the council have applied to the Minister of Health for the issue of a Provisional Order to alter and in part repeal the local Acts and Orders in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 and section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

PART I.

PRELIMINARY.

Short title
and com-
mencement.

1. This Order may be cited as the Shipley Order 1940 and save as otherwise expressly provided shall come into operation on the date of the Act of Parliament confirming it.

Incorporation of
Waterworks
Clauses
Acts.

2.—(1) The provisions of the Waterworks Clauses Act 1847 which are incorporated with the Public Health Act 1936 by section 120 of the last named Act (but subject to the provisos in the said section contained) and the provisions of the Waterworks Clauses Act 1863 are hereby incorporated with this Order.

(2) The provisions referred to in subsection (1) of this section and sections 11 to 14 of the Waterworks Clauses Act 1847 shall be incorporated with the local Acts and Orders in lieu of the provisions of the Waterworks Clauses Act 1847 and the Waterworks Clauses Act 1863 referred to in section 11 (8 & 9 Vict. c. 18 and 10 & 11 Vict. c. 17 incorporated with this Act) of the Shipley Waterworks and Police Act 1854 section 2 (Incorporation of Acts) of the Shipley Urban District Council Act 1904 and section 3 (Incorporation of Acts) of the Shipley Urban District Council Act, 1912.

PART I.
 —cont.
 10 & 11 Vict.
 c. 17.
 26 & 27 Vict.
 c. 93.

3. In this Order unless the context otherwise requires—
- “the water undertaking” means the water undertaking of the council as for the time being authorised;
 - “the limits of supply” means the limits within which the council are for the time being authorised to supply water;
 - “the district” means the urban district of Shipley;
 - “house” means a dwelling-house whether a private dwelling-house or not and includes any part of a building if that part is occupied as a separate dwelling-house;
 - “the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the district;
 - “statutory security” has the meaning assigned to it by section 4 of the Shipley Improvement Act 1901;
 - “the Minister” means the Minister of Health.

Interpreta-
 tion.

PART II.

SUPPLY OF WATER &c.

4. This Part of this Order shall come into operation on the first day of April one thousand nine hundred and forty-one.

Commence-
 ment of
 Part II.

5.—(1) The council shall at the request of the owner or occupier of any house or part of a house entitled under the provisions of Part IV of the Public Health Act 1936 or of the local Acts and Orders to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at rates not exceeding the rates hereinafter specified (that is to say):—

Rates for
 supply of
 water for
 domestic
 purposes.
 26 Geo. 5. &
 1 Edw. 8.
 c. 49.

where the net annual value of the premises so supplied with water does not exceed twelve pounds at a rate per centum not exceeding seventeen pounds ten shillings;

PART II.

—cont.

where such net annual value is above twelve pounds and does not exceed thirty pounds at a rate per centum not exceeding thirteen pounds fifteen shillings ;

where such net annual value is above thirty pounds and does not exceed fifty pounds at a rate per centum not exceeding eleven pounds five shillings ;

where such net annual value is above fifty pounds at a rate per centum not exceeding ten pounds.

Nothing in this subsection shall entitle the council in any case to demand for the water rate for any house a greater sum than they would be entitled to demand if the net annual value of the house or part thereof were just sufficient to bring it within the next division of the said scale relating to premises of a higher net annual value.

(2) The net annual value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or by any alterations in or additions to such list made during such period :

Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be determined by a court of summary jurisdiction.

(3) Section 7 (As to supply of water for other than domestic purposes) of the Shipley Urban District Council Act 1912 shall be read and have effect as if the expression " net annual value " were substituted therein for the expression " annual rack-rent or value."

As to net annual value of two or more houses in one occupation.

6. Where two or more houses or buildings connected by any means of communication not being a public highway are in the occupation of one and the same company body firm or person they shall if the council so decide be treated for the purpose of determining the amount of water rate chargeable by the council in respect of any supply of water for domestic purposes furnished by the council to any one or more of such two or more houses or buildings to be one tenement having a net annual value equal to the aggregate of the net annual values of the separate houses or buildings so occupied :

Provided that a person aggrieved by a decision of the council under this section may appeal to a court of summary jurisdiction.

Recovery of rates from persons removing.

7. If a justice is satisfied on complaint by any officer of the council that any person is quitting or about to quit any premises to which the council supply water and has failed to pay on demand any water rate which may be due from him

and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein to seize forthwith and detain the goods and chattels of the offender until the complaint is determined upon the return of the summons.

8. Where a person who takes a supply of water for domestic purposes desires to use water for a swimming bath or bathing pool the council may require that all water required for such swimming bath or bathing pool shall be taken by meter and paid for accordingly.

Supplies to swimming baths and bathing pools.

9. Any water rate or charge payable to the council in respect of premises within the district may be collected together with the general rate.

Collection of water rate &c.

10. At any time after the first day of April nineteen hundred and forty-three the Minister may from time to time on the application of the council or of any local authority having jurisdiction within the limits of supply by order vary either by way of increase or decrease the rates and charges for the supply of water which the council are by the local Acts and Orders as amended by this Order authorised to charge and such order may provide for the alteration of the basis or scale of such rates and charges :

Revision of water rates and charges.

Provided that the rates and charges prescribed in any such order shall be of such amounts as in the opinion of the Minister will suffice to provide a reasonable sum as a contribution towards the reserve fund of the water undertaking so long as that fund does not amount to the maximum prescribed for the fund :

Provided also that in the absence of exceptional circumstances the Minister shall not alter the maximum rates and charges at less intervals than every five years.

11.—(1) The council may make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rent rate or charge or any instalment thereof from any person who pays the same within such time after demand of the rent rate or charge or any instalment thereof as the case may be as the council may prescribe :

Discounts on water charges &c.

Provided that—

- (i) no discount shall be allowed when the person paying such rent rate or charge or any instalment thereof is the owner who is entitled to any allowance for which provision is made by subsection (2) of section 129 of the Public Health Act 1936 ; and

PART II.
—cont.

(ii) the same rate of discount shall be allowed in similar circumstances to every person from whom such water rent rate or charge or any instalment thereof shall be demanded.

(2) If and so long as the council allow such discount notice of the effect of this section shall be endorsed on every demand note for water rents rates or charges.

PART III.

FINANCIAL.

Receipts and
expenses of
water under-
taking.

12. Notwithstanding anything contained in any enactment all money received by the council in respect of the revenue of the water undertaking (including the interest and other annual proceeds of investments forming part of any sinking fund or reserve renewals or other similar fund) shall be carried to and form part of the general rate fund and all liabilities falling to be discharged from the revenue of the water undertaking shall be paid out of the general rate fund :

Provided that a sum equal to the interest and other annual proceeds as aforesaid shall (subject in the case of any of the said funds to any statutory limit on the amount of the fund) be credited in the accounts to the fund on the investments of which the same is received.

Accounts of
water under-
taking.

13.—(1) The council shall keep the accounts of the water undertaking for the year ending the thirty-first day of March nineteen hundred and forty-one and later years so as to distinguish capital from revenue and as respects revenue so as to show under a separate heading or division on the one side all receipts in respect of the water undertaking and on the other side all payments and expenses in respect of the water undertaking and such payments and expenses shall be divided so as also to show in each case the amounts expended upon each of the following purposes :—

- (a) The working and establishment expenses and cost of maintenance of the water undertaking ;
- (b) The interest on moneys borrowed by the council for the purposes of or connected with the water undertaking ;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys so borrowed ;
- (d) All other expenses (if any) of the water undertaking properly chargeable to revenue ; and
- (e) Any money expended on any of the purposes mentioned in the next succeeding section of this Order.

(2) The council shall show in their accounts relating to the water undertaking all items (including receipts and payments

in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the water undertaking.

PART III.
—cont.

(3) In all cases in which the council keep separate accounts for separate purposes of the water undertaking they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

14.—(1) If in any financial year the moneys received by the council on account of the revenue of the water undertaking exceed the moneys expended by the council in respect of that undertaking in respect of the expenses mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section of this Order the council may in that year apply out of the general rate fund a sum equal to the amount of such excess to any of the following purposes:—

Application
of excess
revenue of
water under-
taking
reserve fund.

(a) In reduction of capital moneys borrowed for the purposes of the water undertaking;

(b) In the construction renewal extension and improvement of the works and apparatus of the water undertaking;

(c) In providing a reserve fund in respect of the water undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities until the fund so formed amounts to a sum equal to one tenth of the aggregate capital expenditure of the council on the water undertaking (in this section called "the prescribed maximum").

(2) A reserve fund formed under this section shall be applicable to answer any deficiency at any time arising in the income of the council from the water undertaking or to meet any extraordinary claim or demand at any time arising against the council in respect of the water undertaking or to the payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of the water undertaking and so that if the reserve fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund under the foregoing provisions of this section although the fund may not at the time have reached or may have been reduced below the prescribed maximum.

PART IV.

MISCELLANEOUS.

Council to have powers of urban authority for supply of water.

15.—(1) Within the limits of supply the council subject to the provisions of this Order shall have and enjoy and may exercise all the powers rights and authorities of an urban authority under Part IV (Water supply) of the Public Health Act 1936 other than those contained in subsection (1) of section 126 of that Act as if the limits of supply were the district and as if the council were supplying water under that Act :

Provided that the duty imposed by paragraph (b) of subdivision (ii) of section III of that Act and the powers conferred by sections 137, 138, 139, 140 and 141 of that Act shall not be discharged or exercised in respect of houses premises wells tanks or other sources of supply or wells tanks cisterns or water butts used for the supply of water beyond the district.

(2) The provisions of this section shall be in addition to and not in derogation of any other powers conferred by this or any other enactment.

As to streets forming boundary of limits of supply.

16.—(1) Where the limits of supply are bounded by or abut upon any street which is wholly or for part of its width outside those limits the council may for the purpose of supplying water to the owner or occupier of any premises abutting on or situate near to that street and being within the limits of supply exercise with respect to the whole width of such street the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the limits of supply subject nevertheless to the observance of the conditions imposed on an exercise of these powers.

(2) The owner or occupier of any premises to which subsection (1) of this section applies may for the purpose of laying any communication pipe or of complying with any obligation to maintain any pipe or apparatus which he is liable to maintain exercise the like power of opening the ground between any main or pipe of the council and his premises and of opening or breaking up so much of the pavement of the street as shall be between such main or pipe and his premises and any sewer or drain therein as if where such street forms the boundary of or abuts on the limits of supply the whole width of the street were within the limits of supply.

(3) Nothing in this section shall entitle or require the council to supply water to the owner or occupier of any premises abutting on or situate near to any such street and being outside the limits of supply.

(4) In this section the word "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

17.—(1) The council may require that any house the erection of which was not commenced before the coming into force of this Order and to which water is required to be delivered at a height greater than thirty-five feet below the draw-off level of the tank or the service reservoir from which a supply of water is being or is to be furnished by them to such house shall be provided with a cistern having a ball and stop-cock fitted on the pipe conveying water to it capable of containing a total quantity of water sufficient to provide an adequate supply to such house for a period of twenty-four hours. Cisterns.

(2) If a consumer whom the council have in accordance with the foregoing requirements of this section required to provide a cistern fails to comply with the requirement or if a consumer fails to keep in good repair any cistern in use in his building or the ball and stop-cock appurtenant to that cistern the council may themselves provide a cistern or execute any repairs necessary to prevent waste of water and may recover the expenses reasonably incurred by them in so doing summarily as a civil debt from the owner of the building but without prejudice to the rights and obligations as between themselves of the owner and the consumer.

18.—(1) In addition to the powers conferred by section 132 of the Public Health Act 1936 the council may make byelaws as to the testing and stamping of taps cocks ferrules valves flushing cisterns flushing apparatus and other similar fittings and apparatus and prescribing the charge to be made for such testing and stamping and the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be the Minister. Extension of powers for preventing waste &c. of water. 23 & 24 Geo. 5. c. 51.

(2) Nothing in subsection (1) of this section or in any byelaws made thereunder shall apply to any fittings used on any premises which form part of the railway of a railway company so long as such fittings do not cause waste undue consumption misuse or contamination of water which is supplied by the council.

(3) Any person who shall forge or counterfeit any stamp or mark used by the council or by the authority of the council for any of the purposes of this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

PART IV.

—cont.

Meters &c.
to measure
water or
detect waste.

19.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the council may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on service pipes and mains and stop-cocks in the pipes supplying houses with water and may insert in the road or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily stop up break up and interfere with public and private streets roads lanes footways courts passages sewers pipes wires and apparatus:

41 & 42 Vict.
c. 76.

Provided that the council shall not interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of that Act.

(2) (i) The council shall not exercise the powers of this section in respect of any street or road belonging to or maintained by a railway company except with the consent of such company (which consent shall not be unreasonably withheld) or unreasonably interfere with or render less convenient the access to or exit from any station or depot of such company.

(ii) Any question as to whether or not any consent has been unreasonably withheld shall be determined by arbitration as hereinafter provided.

Maintenance
of common
pipe.

20. Where several houses or other premises or parts of houses or other premises in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or other premises or parts of houses or other premises the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the officer duly authorised in that behalf by the council.

Power to
council to
repair com-
munication
pipes.

21. If it appears to the council that by reason of any injury to or defect in any communication pipe which the council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the council subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been found the reasonable expense incurred by the council in executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes)

shall be recoverable summarily as a civil debt by the council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier :

PART IV.
 —cont.

Provided that except in case of emergency the council shall not under the powers of this section enter any house or private premises unless they shall have given to the occupier of such house or premises and (in any case where the communication pipe is repairable by the owner of the said house or premises) to such owner not less than twenty-four hours' previous notice of their intention so to enter.

22.—(1) In the case of all buildings the erection of which is commenced after the commencement of this Order connected with the mains of the council the council may in cases where the communication pipes are laid by the person requiring the supply or by the council at his request require such person at the time when the pipes are laid to insert or to have inserted and thereafter to maintain a stop-cock (which expression where used in this section shall include the necessary covers or boxes for giving access and protection thereto) in the communication or service pipe from the said premises in some position as near as is reasonably possible to the point at which such pipe passes the boundary of the street or to the point at which such pipe enters any premises in or under the street whichever of those points is the nearer to the main of the council from which the supply is given to the said premises and if such person fails to comply with such requirement the council may insert and maintain a stop-cock in such communication or service pipe and recover the reasonable expenses incurred by them in so doing from such person summarily as a civil debt.

Stop-cocks
 &c. to be
 fitted in com-
 munication
 pipes.

(2) For the purpose of complying with any obligation under this section to insert or to maintain a stop-cock and for the purpose of maintaining any existing stop-cock in a communication or service pipe from any premises within the limits of supply the person liable shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(3) The council may by agreement with any person liable to insert or to maintain any stop-cock and for that purpose authorised to open or break up any street execute such works on behalf of such person and any expenses reasonably incurred by the council in so doing shall be repaid by the person with whom the agreement is made and shall be recoverable summarily as a civil debt.

23. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any duly authorised officer of the council may at all reasonable times between the hours of

Extension of
 power to
 inspect
 premises.

PART IV.
—cont.

seven and nine in the forenoon and also between the hour of four in the afternoon and one hour after sunset enter any house or premises supplied with water by the council in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering under the said section 57 or under this section or from making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds :

Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section.

Entry on
premises to
remove
meters and
fittings.

24. The council by their agents or workmen after forty-eight hours' notice in writing under the hand of the engineer or other officer of the council to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the council is laid or fixed and through or in which the supply of water is from any cause other than the default of the council discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of removing and may remove every such pipe meter or fitting repairing all damage caused by such entry or removal.

Penalty for
closing
valves and
apparatus.

25. Every person who shall wilfully (without the consent of the council) or negligently close or shut off any valve cock or other work or apparatus belonging to the council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the council) be liable on conviction to a penalty not exceeding five pounds and the council may in addition thereto recover the amount of any damage sustained by them :

Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for
opening
valves and
apparatus.

26. Any person being the owner or occupier of any house or building or premises or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the council who shall without the authority of the council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the council and provided or available for the purposes of affording such supply shall be deemed to commit an offence under section 60 of the Waterworks Clauses Act 1847 and that section shall extend and apply accordingly:

27. If the council commence proceedings for the recovery of a sum due for the supply of water any other sum due or payable to the council in respect of the sale or hire of any fittings supplied by them for or in connection with the supply of water or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily provided the amount due or payable in respect thereof does not exceed twenty pounds.

PART IV.
 —cont.
 As to
 recovery
 summarily
 of sums due
 for fittings.

28. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the water undertaking or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort.

Recovery of
 demands.

29. Save as otherwise expressly provided by any Act or Order from time to time relating to the water undertaking or any incorporated enactment all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order or any byelaw made in pursuance of a power thereby conferred may be prosecuted and recovered in a summary manner :

Recovery of
 penalties &c.

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

30.—(1) Any notice to be served by the council shall be sufficiently authenticated by the signature of the clerk or other officer of the council for the time being authorised in writing by the council or by the name of the officer being printed or stamped on the notice.

Authentica-
 tion and
 service of
 notices by
 council.

(2) Any such notice may be served either personally or by a prepaid letter sent by post and addressed to the person to be served by name at his last known or usual place of abode or of business or by delivering the notice to some inmate of the premises supplied with water or if the premises are unoccupied and the place of abode of the person to be served cannot be found after proper inquiry any notice not being a notice to pay any charge may be affixed to some conspicuous part of the premises.

31. Where under this Order any question or dispute is to be referred to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) the reference shall be to a single arbitrator to be agreed upon between

Arbitration.

PART IV.
—cont.52 & 53 Vict.
c. 49.
24 & 25 Geo. 5.
c. 14.

the parties or in default of such agreement to be appointed on the application of either party after notice in writing to the other by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 and any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration.

Repeal.

32. The enactments mentioned in the first column of the schedule to this Order are hereby repealed to the extent shown in the second column of that schedule:

Provided that the repeal of section 9 of the Shipley Local Government Act 1874 and of section 8 of the Shipley Urban District Council Act 1912 shall not have effect until the first day of April one thousand nine hundred and forty-one.

SCHEDULE.

PROVISIONS OF LOCAL ACTS AND ORDERS
REPEALED BY THIS ORDER.

The Shipley Waterworks and
Police Act 1854.

Section XLVII (Saving rights of
Local Boards under Public
Health Act).

The Shipley Local Government
Act 1874.

Section 9 (Rate at which water
is to be supplied for domestic
purposes).

Section 12 (Power to supply
water beyond district by
agreement).

Section 28 (Power to acquire
additional lands by agree-
ment) so far as it relates to
the purposes of the water
undertaking.

Section 47 (Provisions as to
defraying expenses of execu-
tion of Act).

The Order relating to Shipley
confirmed by the Local Gov-
ernment Board's Provisional
Orders Confirmation (No. 9)
Act 1892.

Paragraph (2) of article III.

Shipley Improvement Act 1901.

Section 42 (Byelaws for preventing waste &c. of water).

Section 101 (Power to purchase lands by agreement and to appropriate lands) so far as it relates to the purposes of the water undertaking.

Paragraph (B) of section 241 (Expenses of executing Act).

Shipley Urban District Council Act 1912.

Section 8 (Price of supply by measure).

Section 25 (Intersecting streets).

So much of section 58 (Expenses of executing Act) as applies to the water undertaking.

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(12210)